

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior District Judge Richard P. Matsch**

Date: March 18, 2010
Courtroom Deputy: J. Chris Smith
FTR Technician: Kathy Terasaki

Civil Action No. 08-cv-00996-RPM

KATHY D. CRUZ and
RAMON L. CRUZ,

George E. McLaughlin

Plaintiffs,

v.

CHRISTOPHER R. COLE, M.D.

Deanne C. McClung

Defendant.

COURTROOM MINUTES

Trial to Jury Day 4

9:00 a.m. Court in session.

Plaintiffs and defendant present.

Jurors present.

Jury instructions read to jurors by the Court.

Court Security Officer sworn.

Court instructs jurors.

Jurors excused to begin their deliberations.

Counsel state there are no new objections to the jury instructions and renew all previous stated ones.
Court states all previously stated objections are incorporated herein as part of the record.

9:41 a.m. Court in recess.

12:28 p.m. Court in session.

Court states it received notice that the jury has reached a decision.

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Jurors present.

Presiding juror states the jury has reached a verdict.

Court reads jury's verdict.

Jury finds pursuant to its March 18, 2010 Verdict Form. (Verdict Form retained pursuant to General Order 2007-3.

Court thanks jurors for their service.

Jurors discharged.

Court signs Stipulation and Order Regarding Custody of Exhibits and Depositions.

ORDERED: Judgment will enter for defendant pursuant to the jury's verdict.

12:38 p.m. Court in recess.

Clerk's Note: Redacted Verdict attached. Exhibits and depositions returned to counsel.

Trial continued. Total time: 51 min.